

25STCV37527 25STCV37527

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-14

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Case Number: 25STCV37527 Hearing Date: July 14, 2026 Dept: 617

Dept.

617

Date:

7-14-26

Case

#: 25STCV37527

Trial

Date: None Set

STAY

MOVING

PARTY: Defendants, Kevin Anthony Zuniga, Avis Rent a Car System, LLC, and PV Holding Corp.

RESPONDING

PARTY: Plaintiffs, Suceli Rios Torres, Rose Rios Torres, Guadalupe Rios Torres, and Ivan Rios, deceased, through his Successor-In-Interest, Suceli Rios Torres

RELIEF

REQUESTED

Motion

to Stay

SUMMARY
OF ACTION

Ivan

Rios was tragically killed in a hit and run crash while crossing Pico Boulevard northbound. On December 23, 2025, Plaintiffs, Suceli Rios Torres, Rose Rios Torres, Guadalupe Rios Torres, and Ivan Rios, deceased, through his Successor-In-Interest, Suceli Rios Torres, filed the instant wrongful death action against Defendants Kevin Anthony Zuniga, Avis Rent a Car System, LLC (Avis), and PV Holding Corp. (PV). Plaintiffs allege Zuniga was the driver of the car that hit Ivan. They assert causes of action for: (1) Negligence/Negligence Per Se; (2) Negligent Hiring, Supervision and Retention; (3) Negligent Entrustment of Motor Vehicle; and (4) Wrongful Death.

RULING: Granted in part.

Request

for Judicial Notice: Granted.

The Court takes judicial notice of the existence of the complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of the pending criminal prosecution against Zuniga and the case's docket. (Evid. Code, § 452, subd. (d).)

Defendants move to stay proceedings pending the disposition of a criminal prosecution against Zuniga arising out of the alleged hit and run crash. They argue that Zuniga is prejudiced by choosing between litigating this action and asserting his Fifth Amendment right against self-incrimination. They further contend that this prejudice extends to Avis and PV because Zuniga is their only source of personal knowledge regarding the incident. Plaintiffs oppose the motion, arguing that a total stay is unwarranted, especially as to Avis and PV and certain non-incriminating information such as insurance coverage, rental documents, and corporate policies. Defendants' motion is granted in part, and the action is stayed as to Zuniga and all discovery regarding his alleged liability for the collision pending disposition of the criminal case.

"Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote

judicial efficiency.” (Freiberg v.

City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489; see OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 “[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice”]; Cooper v. Superior Court In and For Los Angeles County (1961) 55 Cal.2d 291, 301; Bailey v. Fosca Oil Co. (1963) 216 Cal.App.2d 813, 817.)

“Courts that are confronted with a civil defendant who is exposed to criminal prosecution arising from the same facts ‘weigh the parties’ competing interests with a view toward accommodating the interests of both parties, if possible.’” (Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 307.) One accommodation available in the Court’s judicial toolbox is stay of the civil proceeding until disposition of the criminal prosecution. (Id. at p. 307.) In making this decision, the Court considers: (1) “the extent to which the defendant’s fifth amendment rights are implicated”; (2) “the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay”; (3) “the burden which any particular aspect of the proceedings may impose on defendants”; (4) “the convenience of the court in the management of its cases, and the efficient use of judicial resources” (5) “the interests of persons not parties to the civil litigation”; and (6) “the interest of the public in the pending civil and criminal litigation.” (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885.) Rather than an issue of constitutional dimension, the question of whether to stay the proceeding is an issue of abuse of discretion. (Id. at pp. 885-87.)

The Court grants a limited stay of the action. The action is stayed as to Zuniga and all discovery regarding his alleged liability for the collision pending resolution of the criminal prosecution. The implication of Zuniga’s right against self-incrimination is obvious as he is being criminally prosecuted for the same hit and run crash alleged here. [RJN Ex. 2.] He is thus put in the position of defending this case and possibly incriminating himself or asserting his constitutional right and losing the action. Judicial economy also supports a stay as the outcome of the criminal action may narrow the issues here. However, a stay is unwarranted as to Avis, PV, and discovery concerning matters other than Zuniga’s liability. Discovery of matters such as insurance coverage and rental policies, as well as how such policies were applied in renting the car to Zuniga, have no bearing on

the issues involved in the criminal proceeding (i.e., whether Zuniga was involved in an accident resulting in Ivan's death and failed to comply with his duties under the hit and run statute). (See Veh. Code, § 20001, subds. (a), (b)(2).) Staying the action in this regard will unnecessarily cause further delay and prejudice Plaintiffs' interest in expeditiously prosecuting their civil action. Defendants' motion is therefore granted in part in accordance with this order.

The Court will seek updates on the pending criminal prosecution and therefore sets an OSC re: Status of Criminal Case for 90-120 days from the hearing date. Depending on the update, the Court will either further continue the stay or lift the stay and set new hearing dates.

Defendants to give notice.